

#	Case Name	Tentative
1	Kiani vs. Masimo Corporation 2024-01426785	<u>Defendant Masimo Corporation’s Motions to Compel Further Responses to Request for Production of Documents:</u> Defendant Masimo Corporation’s Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED. Within 45 days, Plaintiff Joe E. Kiani shall serve further verified responses <u>without objection</u> to Defendant’s Request for Production of Documents, Set One, Request Nos. 14-15, 28-32, 35, 69, and 71. To the extent Kiani withholds any documents responsive to these requests on the basis of a privilege, Kiani shall provide a privilege log that complies with the requirements of Code Civ. Proc. §2031.240, subd. (c). It is unclear what relief Masimo is requesting with respect to Instruction C. Masimo does not identify any response to any RFP where claims of privilege have not been accompanied by a privilege log that complies with Code Civ. Proc. §2031.240, subd. (c). To the extent Kiani is withholding any document from production, Kiani must provide a privilege log that complies with Code Civ. Proc. §2031.240. Within 60 days, Plaintiff shall pay monetary sanctions to Defendant in the amount of \$10,000. Defendant has complied with the requirements of Code Civ. Proc. §2031.310. Defendant has established sufficient meet and confer efforts prior to filing this motion. (See ROA 379 (“Barron Decl.”) at ¶¶ 10-18; Exhs. H, J, K, L, and M.) Defendant’s separate statement complies with the requirements of Cal. Rules of Court, Rule 3.1345. Defendant’s motion is timely under Code Civ. Proc. §2031.310, subd. (c). (See Barron Decl. at ¶18, Exh. M.) Defendant has established good cause to compel further responses to the disputed requests by showing they are within the scope of discovery and Kiani has not produced any documents in response to any of the Requests at issue in this motion. Kiani has failed to substantiate his objections to the disputed Requests. <u>Overbreadth/Irrelevance:</u> Kiani has failed to show that the Requests at issue in this motion are overly broad or seek irrelevant information. (See Code Civ. Proc., § 2017.010 [broad scope of discovery]; see also <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 591 [relevance for purposes of discovery].)

Burden: Kiani must substantiate a claim of undue burden with a factual showing. (See, *Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550.) No such showing has been made here.

Monetary Sanctions: Since Kiani's objections are meritless and he has not produced any documents in response to the Requests at Issue, the court finds that there is no substantial justification in opposing this motion and monetary sanctions are warranted.

Defendant Masimo Corporation's Motions to Compel Further Responses to Form Interrogatories:

Defendant Masimo Corporation's Motion to Compel Further Responses to Form Interrogatories, Set One is GRANTED in PART. As discussed above, Defendant has shown that the motion is timely, accompanied by an appropriate separate statement, and preceded by adequate meet and confer efforts. Accordingly, Plaintiff has the burden to justify the adequacy of his responses to the disputed interrogatories.

The Motion is GRANTED with respect to Interrogatory No. 8.4. Within 45 days, Plaintiff shall serve a supplemental verified response to Interrogatory No. 8.4 that states the total amount of Kiani's monthly income at the time of his termination from employment with Masimo.

The motion is DENIED with respect to Interrogatory Nos. 8.3, 8.5, 8.6, and 8.8. Kiani's responses fully answer the question posed by each of these interrogatories. Masimo attempts to construe these interrogatories to call for information they do not call for. If Masimo seeks to obtain discovery regarding Kiani's post-termination income and employment, Masimo can propound special interrogatories that seek the specific information it seeks or Masimo could elect to utilize the form interrogatories – employment law that include a section entitled "Loss of Income – Interrogatories to Employee".

Defendant Masimo Corporation's Motions to Compel Further Responses to Requests for Admission:

Defendant Masimo Corporation's Motion to Compel Further Responses to Requests for Admissions, Set One is CONTINUED to ***September 17, 2026 at 8:30 a.m.*** While Defendant has shown that the motion is timely and accompanied by an appropriate separate statement, the parties pre-motion meet and confer efforts

were solely centered around Kiani's relevance objections.

Kiani's objection based on relevance is OVERRULED. Each of these Requests is within the broad scope of discovery. (See Code Civ. Proc. §2017.010; see also *Lopez*, supra., 246 Cal.App.4th at 591.)

The Parties have not met and conferred regarding Kiani's objections concerning the ambiguity of each of the disputed RFAs. The Parties are ORDERED to meet and confer regarding these ambiguities so that the facts Masimo seeks Kiani to admit or deny are clearly set forth. All meet and confer efforts shall be in person, by telephone or by video conference regarding. Meet and confer efforts by written correspondence, email or text are not acceptable. No later than 15 days before the continued hearing date, the Parties shall file a joint statement that identifies any remaining disputes. None of Kiani's other objections justifies a refusal to provide a response that complies with Code Civ. Proc. §2033.220, subd. (b).

Moving Defendant shall provide notice.

Plaintiff Joe E. Kiani's Motion to Compel Further Responses to Request for Production of Documents:

Plaintiff Joe E. Kiani's Motion to Compel Further Responses to Request for Production of Documents is CONTINUED to ***September 17, 2026 at 8:30 a.m.*** in this department.

Plaintiff seeks an order compelling Defendant Masimo Corporation to produce all documents and/or a valid privilege log of documents withheld from production due to a claim of privilege responsive to Plaintiff's Request for Production Nos. 4, 21-23, 33-39, 47-51, and 65. The Court has already compelled Defendant to produce responses to each of these Requests in its 8/19/25 order on Plaintiff's prior motion to compel (ROA 281).

Code Civ. Proc. §2031.320 permits a party to move for an order compelling compliance with a request for production when the responding party "fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance."

Plaintiff contends that Defendant has failed to produce thousands of documents responsive to these requests. Defendant argues that the documents are not within its possession, custody, and/or control because the law firm of Willkie Farr & Gallagher LLP is

		the custodian of these documents. Plaintiff has sought to obtain the documents directly from Willkie. Plaintiff contends that there are thousands of non-privileged responsive documents in Wilkie's possession that have not been produced by either Defendant or Wilkie. Defendant has objected to Plaintiff's attempts to obtain the documents directly from Wilkie through a third-party subpoena. It is completely unclear to the court why thousands of non-privileged responsive documents are being withheld from production. This hearing is CONTINUED so that Plaintiff may also move to compel compliance with the third-party subpoena directed at Wilkie. The Court will set the hearing on the motion to compel compliance with the third-party subpoena for the same date as the continued hearing on this motion. <u>All counsel and third-party deponent shall all meet and confer in person, by telephone or by video conference regarding whether any potentially non-privileged documents regarding the Business Review and Risk Committee's investigation of Kiani have yet to be produced. Meet and confer efforts by written correspondence, email or text are not acceptable.</u> No later than 15 days before the continued hearing date, the Parties shall file a joint statement that identifies any remaining disputes regarding the adequacy of Masimo and/or Willkie's privilege log and/or the production of any yet-to-be produced documents. This joint statement is in addition to any reply briefing that may be filed on that date. Plaintiff Joe E. Kiani's Motion to Seal: Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Plaintiff shall provide notice of these rulings.
2	Brown vs. Irvine Public Schools Foundation 2025-01474076	Motion for Leave to File Amended Complaint Plaintiff Cheryl Brown's motion for leave to file a First Amended Complaint is granted. There is a strong policy favoring amendment of pleadings. "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." <i>City of Torrance v. Southern California Edison Co.</i> (2021) 61 Cal.App.5th 1071, 1091. This liberal policy applies